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Guidance

Placing UKCA or CE marked products on the market in Great Britain

What you need to do to comply with regulations which govern manufactured products placed on the market in Great Britain.

From: **Department for Business, Innovation, Science and Trade (/government/organisations/department-for-business-innovation-science-and-trade)** and **Department for Business and Trade (/government/organisations/department-for-business-and-trade)**

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Applies to England, Scotland and Wales

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This guide provides an overview of the steps businesses need to take when placing a product on the market in Great Britain (England, Scotland and Wales) under the UK Conformity Assessed (UKCA) or Conformité Européenne (CE) regimes. This process may differ for specific products as signposted throughout the guide. Product regulations should therefore also be consulted.

UKCA and CE markings demonstrate that the manufacturer believes that their product meets the relevant product requirements. The UKCA and CE regimes span over 20 product types, including goods known in the EU as 'new approach goods', and additional sectors such as aerosols and rail. These product types are listed in the product marking table for Great Britain and Northern Ireland (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes#markings-used-for-product-types-in-great-britain-and-northern-ireland).

Many UK product requirements are derived from EU rules that were developed while the UK was an EU member state. Where the aims and requirements of product regulations meet the needs of the UK, the UK continues to recognise the CE marking, alongside or in place of the UKCA marking, for the Great Britain market under The Product Safety and Metrology (Amendment) Regulations 2024 (https://www.legislation.gov.uk/uksi/2024/696/contents/made). This provides businesses with flexibility on which conformity process they wish to use. There is further guidance available on recent product safety and metrology legislative changes (https://www.gov.uk/government/publications/product-safety-and-metrology-regulatory-changes-ukca-and-ce-regimes).

There are a range of sectors which have rules and standards outside of the UKCA and CE regimes. You can access product safety sector guidance from the Office of Product Safety and Standards at product safety for businesses: A

to Z of industry guidance (https://www.gov.uk/guidance/product-safety-for-businesses-a-to-z-of-industry-guidance).

Solicitors, trade associations, local authority trading standards (https://www.gov.uk/find-local-trading-standards-office), and responsible departments (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes#markings-used-for-product-types-in-great-britain-and-northern-ireland) can provide additional advice on which regulations apply to different products.

1. Identify the correct market

Processes are different for placing:

- CE, or CE and United Kingdom Northern Ireland (UKNI) marked products on the market in Northern Ireland (https://www.gov.uk/guidance/placing-ce-or-ce-and-ukni-marked-products-on-the-market-in-northern-ireland)
- CE marked products on the market in the EU (https://www.gov.uk/guidance/placing-ce-marked-products-on-the-market-in-the-eu)
- products in the Crown Dependencies or British Overseas Territories

This guide does not apply to products being placed on the Great Britain market originating from Northern Ireland. For qualifying products, the UK government will guarantee unfettered access, without the need for additional approvals.

Qualifying Northern Ireland products can be placed on the market in Great Britain based on the CE, or CE and UKNI conformity markings used in Northern Ireland. For these circumstances, the placing CE, or CE and UKNI marked products on the market in Northern Ireland guide (https://www.gov.uk/guidance/placing-ce-or-ce-and-ukni-marked-products-on-the-market-in-northern-ireland) should be used instead.

Find out more about:

- which products qualify for unfettered access (https://www.gov.uk/guidance/moving-qualifying-goods-from-northern-ireland-to-the-rest-of-the-uk)

- the UK government's approach to unfettered access (https://www.gov.uk/government/collections/moving-goods-into-out-of-or-through-northern-ireland-from-1-january-2021)

Crown dependencies and British Overseas Territories

The UKCA marking does not apply in the Crown dependencies (Guernsey, Jersey and the Isle of Man).

Find product and consumer safety information for:

- Guernsey (https://gov.gg/tsproductsafety)
- Jersey (https://www.gov.je/stayingsafe/consumerprotection/productsafetywarningsandrecalls/Pages/index.aspx)
- Isle of Man (https://www.gov.im/about-the-government/statutory-boards/isle-of-man-office-of-fair-trading/consumer-advice-service-charter/consumer-safety/)

The UKCA marking does not apply in the British Overseas Territories.

2. Understand roles and responsibilities

There are different roles known as 'economic operators' in the supply chain. Responsibilities for different economic operators vary.

Most of the responsibilities for placing a product on the market lie with the product's manufacturer. However, other economic operators within the supply chain have duties to fulfil.

Product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes) should be consulted for specific economic operator requirements for a given product.

Manufacturer

A manufacturer is an individual or business who manufactures a product, or who has a product designed or manufactured and markets that product on the Great Britain market under their own name or trademark.

Their responsibilities include:

- designing and manufacturing the product in accordance with relevant requirements
- indicating identification details (name, trade name or trademark, and postal address) and applying the correct marking on the product
- drawing together and retaining technical documentation (including a Declaration of Conformity (DoC))
- monitoring compliance and acting upon any concerns
- co-operating with market surveillance authorities

Authorised representative (of the manufacturer)

An authorised representative is an individual or company who is established in the UK and is appointed by a manufacturer to carry out agreed tasks on their behalf.

There are constraints to what an authorised representative can be asked to do. For instance they cannot usually be held responsible for ensuring that a product is designed and manufactured in accordance with essential requirements. Manufacturers ultimately remain responsible for any task they decide to delegate to an authorised representative.

The manufacturer may decide to appoint the company importing or distributing their product to carry out the delegated responsibilities of an authorised representative, in which case that company would adopt all relevant economic operator responsibilities.

An authorised representative may be essential or voluntary depending on the regulation(s) applicable to the product.

Their responsibilities include:

- fulfilling responsibilities as explicitly requested by the manufacturer in writing, such as:
  - affixing the conformity marking
  - drawing up and signing a DoC
  - keeping the necessary technical documentation
  - co-operating with market surveillance authorities
- monitoring compliance and acting upon any concerns

Importer

An importer is any individual or business established in the UK who supplies a product from a country outside the UK for distribution, consumption or use in the course of a commercial activity.

Their responsibilities include:

- indicating identification details on the product (name, trade name or trademark, and postal address)
- ensuring that manufacturers have carried out the correct conformity processes, drawn up the relevant technical documentation, affixed the correct marking, and fulfilled their identification obligations
- retaining technical documentation
- ensuring that storage or transport conditions do not jeopardise the product's compliance
- monitoring compliance and acting upon any concerns
- co-operating with market surveillance authorities
- maintaining a line of contact with the product's manufacturer

If an importer places products on the market under their own name or trademark, or modifies the product in a way that affects compliance or conformity, they assume the responsibilities of the manufacturer. This means they must hold sufficient information about the product's design and production, as they take on the legal obligations associated with affixing the UKCA or CE marking.

Distributor

A distributor is a person in the supply chain, other than the manufacturer or importer, who makes products within the UK available on the Great Britain market.

Their responsibilities include:

- ensuring that importers and manufacturers have fulfilled their identification obligations
- ensuring that manufacturers have placed the correct marking on the product
- ensuring that storage or transport conditions do not jeopardise the product's compliance
- monitoring compliance and acting upon any concerns
- co-operating with market surveillance authorities

If a distributor places products on the market under their own name or trademark, or modifies the product in a way that affects compliance or conformity, they assume the responsibilities of the manufacturer. This means they must hold sufficient information about the product's design and production, as they take on the legal obligations associated with affixing the UKCA or CE marking.

End user

An end user is a person who uses a product. End users are not usually subject to obligations within UKCA or CE product regulations. However, some professional end users who 'put products into service' may be subject to additional obligations, for example under product or health and safety at work legislation.

3. Check which product rules apply

Products must be designed and manufactured in line with the rules set out in product regulations. This may require a conformity marking, such as a UKCA or CE marking, for the product to be placed on the market in Great Britain.

A product is placed on the market when it is manufactured and put into use, or supplied in the course of a commercial activity (whether in return for payment or free of charge) for distribution, consumption, or use. Conformity marking is only necessary if required under sector-specific regulations. Not all products must bear a conformity marking.

You can read about sector-specific requirements for UKCA and CE marking in our guidance on product regulations by sector and current approaches to product marking: UKCA and CE regimes (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes).

It is common for more than one regulation to apply to a product. To place a conformity marking on a product, it must comply with all relevant regulations.

Product regulations establish essential requirements that products must meet to safeguard public interests such as:

- health and safety
- product performance
- environmental protection

These regulations outline the objectives to be achieved or the risks to be addressed, without prescribing specific technical solutions. This approach allows manufacturers flexibility in how they demonstrate compliance with those requirements.

Designated standards

In Great Britain, designated standards are standards which have been recognised by the UK government to give a statutory presumption of conformity that a product meets the relevant essential requirements. These technical specifications are developed by recognised standardisation bodies such as the British Standards Institution (BSI).

They are designed:

- as a practical way for manufacturers to meet essential requirements in legislation
- for repeated application and to provide a common framework for ensuring product safety and performance

However, their use in most cases is voluntary. You should note that the presumption of conformity is rebuttable. Standards often include guidance on which requirements they aim to cover, but they may not address all the essential requirements in the relevant product regulations. Applying a standard does not replace legal obligations.

There is further guidance available on UK designated standards (https://www.gov.uk/guidance/designated-standards), and information on proposed updates at new notices for consultation on designated standards (https://www.gov.uk/guidance/designated-standards-new-or-amended-notices-of-publication). Under most UK product regulations, the use of designated standards is voluntary. They provide a presumption of conformity with the relevant legal requirements, but manufacturers remain free to use alternative technical solutions to demonstrate compliance with the essential requirements in the regulations for their product. The main exception is the Construction Products Regulations 2013 (https://www.legislation.gov.uk/uksi/2013/1387/contents), where designated construction product standards operate on a mandatory basis.

Manufacturers remain fully responsible for assessing all risks associated with their products, identifying relevant requirements, and documenting how these are addressed.

Harmonised standards and Fast-Track UKCA

The Product Safety and Metrology (Amendment) Regulations 2024 (https://www.legislation.gov.uk/uksi/2024/696/contents/made) also allows businesses to mark their product with a UKCA marking where recognised EU requirements and conformity assessment processes have been met. This is known as 'Fast-Track UKCA'. Under the same regulations, businesses can also meet EU requirements and processes to CE mark their product for the Great Britain market under continued recognition.

Similar to UK designated standards, EU harmonised standards are standards which have been developed to give a statutory presumption of conformity with product regulations. These technical specifications are developed by a recognised European Standards Organisation such as the European Committee for Standardisation (CEN). EU harmonised conformity standards (https://single-market-economy.ec.europa.eu/single-market/goods/european-standards/harmonised-standards_en) are published in the Official Journal of the European Union.

There is further guidance on using EU harmonised standards (https://www.gov.uk/government/publications/using-harmonised-standards-for-placing-ce-marked-products-on-the-gb-market) and Fast-Track UKCA (https://www.gov.uk/guidance/fast-track-ukca-ukca-and-ce-regimes). There is also information available on the EU website on the EU new legislative framework (https://single-market-economy.ec.europa.eu/single-market/goods/new-legislative-framework_en).

4. Carry out a conformity assessment procedure

The available routes to demonstrate compliance with conformity requirements are set out in product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes).

Self Declaration of Conformity

Under certain pieces of UK legislation, the manufacturer can self-declare conformity for the product under the UKCA regime.

Legislation	Scope of products which can be self-declared
Aerosol Dispensers Regulations 2009	All products
Construction Products Regulations (Regulation (EU) 305/2011 as retained in UK law and amended)	Products within scope of Assessment and Verification of Constancy of Performance System 4
Ecodesign for Energy-Related Products Regulations 2010	All products listed in Schedule 1 with the exception of boilers as specified in retained Commission Regulation (EU) 813/2013
Electrical Equipment (Safety) Regulations 2016	All products
Electromagnetic Compatibility Regulations 2016	All products
Equipment and Protective Systems Intended for Use in Potentially Explosive Atmospheres Regulations 2016	Equipment-group II, equipment category 3
Measuring Container Bottles (EEC Requirements) Regulations 1977	All products
Medical Devices Regulations 2002	Some Class I devices
Noise Emission in the Environment by Equipment for use Outdoors Regulations 2001	Products subject to noise marking only as listed in Schedule 2

Legislation	Scope of products which can be self-declared
Personal Protective Equipment Regulations (Regulation (EU) 2016/425 as brought into UK law and amended)	Category I personal protective equipment
Pressure Equipment (Safety) Regulations 2016	Category I pressure equipment
Radio Equipment Regulations 2017	All products except where designated standards covering the essential requirements either do not exist or have not been applied (either in full or in part) by the manufacturer.
Recreational Craft Regulations 2017	Certain categories of recreational craft as specified in the legislation
Restriction of the Use of Certain Hazardous Substances in Electrical and Electronic Equipment Regulations 2012	All products
Supply of Machinery (Safety) Regulations 2008	Any machinery which is not in Schedule 2, Part 4 of the regulations. Any machinery that is in Schedule 2, Part 4 where the requirements of all relevant designated standards have been applied in full and where those standards cover all the applicable essential requirements.
Toy (Safety) Regulations 2011	All products except where designated standards covering the essential requirements either do not exist or have not been applied (either in full or in part) by the manufacturer. Or where one or more of the designated standards has been published with a restriction.

Third-party conformity assessment

Other regulations specify circumstances where some or all types of products must be assessed by a conformity assessment body (CAB) (https://www.gov.uk/government/publications/becoming-a-uk-cab-for-product-safety-and-metrology).

Third-party conformity assessments undertake tests or review test reports to ensure that the product complies with the essential requirements of the product regulation.

In the UK, CABs undertaking work for the Great Britain market are known as UK Approved Bodies and are accredited by the UK Accreditation Service (UKAS). They can only be used to certify products for UKCA marking.

The UK Market Conformity Assessment Bodies (UKMCAB) database (https://find-a-conformity-assessment-body.service.gov.uk/) lists UK Approved Bodies which can provide third-party conformity assessments for products being placed on the Great Britain market.

In the EU, CABs are called Notified Bodies and are accredited under each country's accreditation body. They can be located either in the EU or a third-country. They can only be used to certify against EU requirements, which can also be used for the Great Britain market under CE recognition (https://www.gov.uk/government/publications/using-harmonised-standards-to-place-ce-marked-products-on-the-market-in-great-britain-ukca-and-ce-regimes) or Fast-Track UKCA (https://www.gov.uk/guidance/fast-track-ukca-ukca-and-ce-regimes). EU Notified Bodies can be found on the EU New Approach Notified and Designated Organisations (NANDO) database (https://webgate.ec.europa.eu/single-market-compliance-space/#/home).

UK and EU CABs can be located either in their own market or in a third country under a mutual recognition agreement. You can read more about conformity assessment testing under mutual recognition or free trade agreements (https://www.gov.uk/guidance/conformity-assessment-testing-under-mutual-recognition-or-free-trade-agreements) for the UK market.

5. Prepare documentation

Technical file

Under UKCA and CE regulations, manufacturers must prepare a technical file. In most cases, this can be in digital format and should include:

- test reports
- design documents
- risk assessments
- any other information as set out in product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes)

Declaration of Conformity

Once the manufacturer is assured that the product is compliant, a DoC, which is a formal statement that the product complies with the applicable legislation, must be created. This can be done either by the manufacturer themselves, or authorised representative as agreed. Download an example template of a UK DoC (https://assets.publishing.service.gov.uk/media/6a882b34ebba21482c58cc24/model-declaration-of-conformity.odt) (ODT, 8.4 KB).

In some regulations, this is known as a Declaration of Performance (DoP). Other regulations also require Declarations of Incorporation (DoI), for partly completed equipment or machinery, which is a document stating that a product complies with relevant requirements but is not yet fully assembled or operational.

What the manufacturer needs to include in their DoC will vary, and manufacturers should check the relevant product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes) for their product.

The DoC may include:

- the name and full business address of the manufacturer, or authorised representative (if applicable)
- the product's serial number, model, or type identification
- a statement, declaring the manufacturer takes full responsibility for the product's compliance
- the details of the approved body which carried out the conformity assessment procedure (if applicable)
- the relevant legislation with which the product complies - for a UK DoC, this can reference either UK legislation, or recognised EU product regulations
- references to the relevant designated (UK) or harmonised (EU) standards, including the date of the standard or references to other technical

specifications

- the name and signature of the person authorised to sign on behalf of the manufacturer or their authorised representative
- the date the declaration was issued
- supplementary information (if applicable)

6. Use the appropriate marking

It is the responsibility of the manufacturer (or authorised representative as agreed) to mark the product with the appropriate conformity marking.

Depending on the rules which apply to the product, the manufacturer may need to change the marking they use. The product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes) will clearly set this out. For products falling under the UKCA and CE regimes, in most cases this will be the UKCA marking or CE marking. However, there are some other markings for certain products. These include, but are not limited to:

- the reversed epsilon ‘3’ (for example, for aerosols) (https://www.gov.uk/guidance/aerosol-dispensers-regulations-2009)
- the Pi (π) marking (for example, some transportable pressure equipment) (https://www.gov.uk/guidance/placing-transportable-pressure-equipment-on-the-market-in-great-britain)
- the Red Ensign or Wheelmark (for example, marine equipment) (https://www.gov.uk/government/publications/msn-1874-mf-amendment-11-marine-equipment-united-kingdom-conformity-assessment-and-type-approval-procedures-for-marine-equipment)

A product can have multiple different markings (including for example UKCA and CE), as long as it complies with relevant requirements, and the markings can be clearly seen.

Manufacturers and importers must also indicate on the product:

- their name
- registered trade name or registered trademark
- postal address

There may also be other product specific indications that manufacturers are required to include, such as the product:

- type identification
- batch number
- serial number
- model
- CAB number

This information will be set out in product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes).

Where it is not possible to indicate this on the product (for example, because the product is too small), the legislation may allow the manufacturer to affix the information on the packaging or in a document accompanying the product.

Each individual product will not necessarily need an accompanying document if moving through the supply chain as a batch. For example, when 1,000 units are moving from distributor A to distributor B as a batch, one accompanying document is sufficient.

Manufacturers must ensure that the product is accompanied by instructions. The precise content and nature of the instructions will be product specific, but they must be clear, legible, and in easily understandable English.

When applying UKCA and CE markings on a product together or individually, the rules on marking must be met. Markings must be:

- in their standard, recognisable form
- scaled proportionately against the downloadable templates if their size is reduced or enlarged
- at least 5mm in height, unless a different minimum dimension is specified in the relevant legislation
- easily visible, legible, and indelible

In some cases, for example, where the product is too small, the UKCA or CE marking can be affixed to the data plate, packaging, a label affixed to the product or accompanying documentation. Consult product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes) for more information.

UKCA marking

Legislation is currently in force which enables the UKCA marking to be placed on a label affixed to the product, or on a document accompanying the product, until 11pm on 31 December 2027. Businesses can also choose to place the UKCA marking on the product itself.

This applies to most sectors, however there are specific rules for:

- cableways (https://www.gov.uk/government/publications/clarifying-information-for-the-cableway-installations-regulations-2018)
- construction products (https://www.gov.uk/guidance/construction-products-regulation-in-great-britain)
- marine equipment (https://www.gov.uk/government/collections/uk-marine-equipment-regulations)
- medical devices (https://www.gov.uk/guidance/regulating-medical-devices-in-the-uk)
- rail products (https://www.gov.uk/guidance/ending-the-recognition-of-eu-certification-for-rail-interoperability-constituents-subsystems-and-entities-in-charge-of-maintenance-for-domestic-freig)
- transportable pressure equipment (https://www.hse.gov.uk/cdg/pressure.htm)
- uncrewed aircraft systems on the CAA website (https://www.caa.co.uk/drones/rules-and-categories-of-drone-flying/introduction-to-drone-flying-and-the-uk-rules/)

There are also special rules for products imported from an EEA state, or in some cases Switzerland, before 11pm on 31 December 2027. In these cases, the importer's details can be set out elsewhere instead of being affixed to the product itself. This will typically be in an accompanying document or on the product's packaging.

Manufacturers can download a template UKCA marking to place on their product with a filled text option (https://assets.publishing.service.gov.uk/media/6989fddd6da2dee8230a9c2b/ukca-mark-fill.zip) (ZIP, 818 KB), or with an outlined text option (https://assets.publishing.service.gov.uk/media/6989fe254cff1c70a3b6e545/ukca-mark-outline.zip) (ZIP, 2.03 MB).

CE marking

The CE marking must be placed onto the product or to its data plate. If this is not possible or not necessary due to the nature of the product, it must be placed onto the packaging and accompanying documents.

Manufacturers can download a template CE marking and find further information on the European Commission website (https://single-market-economy.ec.europa.eu/single-market/goods/ce-marking_en).

7. Retain records and maintain compliance

Depending on the regulation, different economic operators must keep technical documentation to demonstrate a product is compliant with the applicable conformity requirements. In most cases this is the manufacturer and importer. This information can be requested at any time, by market surveillance or enforcement authorities.

This documentation must be kept for the period specified in the legislation (typically 10 years) after each individual product has been placed on the Great Britain market (rather than the first product of a production run). However, the economic operator should refer to product regulations by sector (https://www.gov.uk/government/publications/product-regulations-by-sector-and-current-approaches-to-product-marking-ukca-and-ce-regimes) to check for any differences to this period.

Economic operators must also be certain that procedures are in place to ensure that products comply with their relevant regulations when each individual product is placed on the Great Britain market. In doing so, they should note:

- changes in the product's design
- characteristics
- designated standards or technical specifications to which the DoC was drawn up

Economic operators have a duty to act where they have reason to believe that the product they have placed on the Great Britain market is not in conformity with the legal requirements of the relevant regulations. They must immediately take the corrective measures necessary to bring the product into conformity or withdraw or recall it. There is further information available about how to notify an enforcement authority (https://www.gov.uk/government/publications/business-notifications-of-unsafe-and-noncompliant-products).

If an enforcement body finds a product does not meet UKCA or CE marking requirements, depending on the risk, they will often provide the relevant economic operator with an opportunity to work constructively to bring the product into conformity. If the economic operator fails to co-operate, they will be obliged to withdraw the product from the market or undertake a recall. The economic operator may also be liable for a fine and imprisonment.

Contact

Contact the goods regulation mailbox at goods.regulation@businessandtrade.gov.uk if you have any questions related to this guidance.

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